ACTION BY WRITTEN CONSENT
OF THE STOCKHOLDERS OF TOBE ENERGY CORP.

The undersigned stockholders of Tobe Energy Corp., a Delaware corporation (the "***Company***"), pursuant to Section 228 of the Delaware General Corporation Law, hereby adopt and approve the following resolutions and the taking of the actions referred to in such resolutions, it being agreed that these resolutions will be effective only after such actions have been approved by the Company's Board of Directors to the extent that such actions require the approval of the Company's Board of Directors, provided that such later effectiveness will not exceed 60 days from the earliest date of delivery of this Action by Written Consent.

Approval of Equity Incentive Plan

The Board of Directors of the Company adopted the 2025 Equity Incentive Plan, a copy of which is attached hereto as **Exhibit A** (the "***Plan***"), and directed that the Plan be approved by the stockholders of the Company in accordance with applicable law.

1. The Plan is ratified, confirmed and approved.

2. A maximum of 1,111,120 of the authorized but unissued or reacquired shares of Common Stock of the Company (the "***Share Reserve***") may be issued under the Plan, subject to adjustment as provided in the Plan.

3. The aggregate maximum number of shares of Common Stock of the Company that may be issued under the Plan pursuant to the exercise of incentive stock options will be equal to three multiplied by the Share Reserve, subject to the Share Reserve and subject to adjustment as provided in the Plan.

Approval of Indemnification Agreements

1. The Indemnification Agreement in substantially the form attached hereto as **Exhibit B** (the "***Indemnification Agreement***") is adopted and approved.

2. The officers of the Company are authorized to execute and deliver Indemnification Agreements on behalf of the Company with current and future (i) executive officers of the Company and (ii) members of the Company's Board of Directors, in each case as determined by the Company, with any changes to such agreements determined by the proper officers of the Company to be desirable, such determination to be conclusively evidenced by such officer's execution and delivery of a definitive Indemnification Agreement, and to take whatever action is deemed necessary to perform the Company's obligations under the Indemnification Agreements.

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The undersigned hereby consent to the foregoing resolutions and direct that this Action by Written Consent be filed with the minutes of the proceedings of the stockholders of the Company and said resolutions will have the same force and effect as if they were adopted at a meeting at which the undersigned were personally present.

This Action by Written Consent may be delivered via facsimile, electronic mail (including pdf or any electronic signature complying with the U.S. federal ESIGN Act of 2000, Uniform Electronic Transactions Act or other applicable law) or other transmission method and will be deemed to have been duly and validly delivered and be valid and effective for all purposes. The undersigned have executed this Action as of the date set forth opposite such stockholders' names.

STOCKHOLDER:

Date of Execution: May 9, 2025

Caleb Lareau

Caleb Lareau

(Signature)

STOCKHOLDER:

Date of Execution: May 9, 2025

Louis Mounsey

Louis Mounsey

(Signature)

STOCKHOLDER:

Date of Execution: May 9, 2025

Colby DeWeese

Colby Freeman DeWeese

(Signature)

EXHIBIT A

2025 EQUITY INCENTIVE PLAN

EXHIBIT B

FORM OF INDEMNIFICATION AGREEMENT